

(k) living accommodation occupied by a person for the purpose of receiving rehabilitative or therapeutic services agreed upon by the person and the provider of the living accommodation, where,

(i) the parties have agreed that,

(A) the period of occupancy will be of a specified duration, or

(B) the occupancy will terminate when the objectives of the services have been met or will not be met, and

(ii) the living accommodation is intended to be provided for no more than a one-year period;

(l) living accommodation in a care home occupied by a person for the purpose of receiving short-term respite care;

(m) living accommodation in a residential complex in which the Crown in right of Ontario has an interest if,

(i) the living accommodation or residential complex was forfeited to the Crown in right of Ontario under any Ontario statute or the *Criminal Code* (Canada),

(ii) possession of the living accommodation or residential complex has been or may be taken in the name of the Crown in right of Ontario under the *Escheats Act, 2015*, or

(iii) the living accommodation or residential complex is forfeited corporate property to which the *Forfeited Corporate Property Act, 2015* applies; and

(n) any other prescribed class of accommodation. 2006, c. 17, s. 5; 2007, c. 8, s. 226; 2007, c. 13, s. 48; 2008, c. 14, s. 58 (2, 4); 2009, c. 33, Sched. 18, s. 30; 2013, c. 3, s. 24; 2015, c. 38, Sched. 7, s. 60; 2017, c. 14, Sched. 4, s. 33; 2021, c. 4, Sched. 11, s. 31 (2); 2021, c. 39, Sched. 2, s. 24.

▼ Section Amendments with date in force (d/m/y)

Other exemption from Act

5.1 (1) This Act does not apply with respect to living accommodation provided to a person as part of a program described in subsection (2) if the person and the provider

of the living accommodation have entered into a written agreement that complies with subsection (3). 2017, c. 13, s. 2.

Program requirements

(2) A program referred to in subsection (1) is a program that meets all of the following requirements:

1. The program consists of the provision of living accommodation and accompanying services where,
 - i. the living accommodation is intended to be provided for no more than a four-year period, and
 - ii. the accompanying services include one or more of the following services, regardless of where and by whom the services are provided:
 - A. rehabilitative services,
 - B. therapeutic services,
 - C. services intended to support employment, or
 - D. services intended to support life skills development.
2. The program is intended to support the occupant of the living accommodation in subsequently obtaining and maintaining more permanent living accommodation.
3. All or part of the program is,
 - i. provided by, or funded under an agreement with,
 - A. the Crown in right of Canada or in right of Ontario,
 - B. an agency of the Crown in right of Canada or in right of Ontario,
 - C. a municipality, or
 - D. a service manager as defined in the *Housing Services Act, 2011*, or
 - ii. provided or funded by a registered charity within the meaning of the *Income Tax Act* (Canada). 2017, c. 13, s. 2.

Agreement between the provider and the occupant of the living accommodation

(3) The agreement between the provider of the living accommodation and an occupant of the living accommodation must meet all of the following requirements:

1. The agreement must state that the provider of the living accommodation intends that the living accommodation be exempt from this Act and must also state that the occupant may apply to the Board under section 9 of this Act for a determination of whether this Act applies with respect to the living accommodation.

2. The agreement must set out the following:

- i. the legal name and address of the provider of the living accommodation,
- ii. the maximum period of the occupant's occupancy of the living accommodation,
- iii. the circumstances under which and the process by which the occupant's occupancy of the living accommodation may be terminated by the provider of the living accommodation,
- iv. the occupant's rights and responsibilities in respect of the occupant's occupancy of the living accommodation,
- v. the rules that apply to the occupant's occupancy of the living accommodation,
- vi. the amount of any consideration required to be paid by the occupant for the right to occupy the living accommodation, and
- vii. the amount of any other charges to be paid by the occupant in conjunction with the living accommodation.

3. The agreement must set out a process to address disputes between the occupant and the provider of the living accommodation which must,

- i. include a reasonable method by which either party may initiate the process,
- ii. provide for the involvement of an individual not otherwise involved in the dispute, to assist the parties in resolving the dispute, and
- iii. meet such other requirements as may be prescribed.

4. Unless the information is set out in a separate agreement under subsection

(4), the agreement must set out the following information in respect of the program under which the living accommodation is provided to the occupant:

- i. the occupant's rights and responsibilities in respect of the occupant's participation in the program, other than the rights and responsibilities described in subparagraph 2 iv,
- ii. the rules that apply to the occupant's participation in the program, other than the rules described in subparagraph 2 v,
- iii. the amount of any charges to be paid by the occupant in conjunction with the program, other than the charges referred to in subparagraphs 2 vi and vii,
- iv. the policy of the provider of the living accommodation or the administrator of the program, as applicable, with respect to securing alternate living accommodation for an occupant whose participation in the program or whose occupancy of the living accommodation is terminated, and
- v. the policy of the provider of the living accommodation or the administrator of the program, as applicable, with respect to readmission into the program.

5. The agreement must meet such other requirements as may be prescribed. 2017, c. 13, s. 2.

Requirements in subpars. 4 i to v of subs. (3)

(4) Where the provider of the living accommodation and the administrator of the program under which the living accommodation is provided to the occupant are not the same person or entity, any information required by subparagraph 4 i, ii, iii, iv or v of subsection (3) may be set out in the agreement in respect of the occupant's participation in the program entered into between the occupant and the administrator of the program, if the agreement,

- (a) sets out the legal name and address of the administrator of the program; and
- (b) meets such other requirements as may be prescribed. 2017, c. 13, s. 2.

No limitation

(5) Nothing in this section limits the availability of other exemptions under this Act.

2017, c. 13, s. 2.

Existing tenancy

(6) For greater certainty, nothing in this section exempts living accommodation that is subject to a tenancy to which this Act applies, unless the tenancy has first been terminated in accordance with this Act. 2017, c. 13, s. 2.

▼ Section Amendments with date in force (d/m/y)

Other exemption from Act, site for land lease home

5.2 (1) This Act does not apply with respect to a rental unit that is a site on which a land lease home is located, if all of the following requirements are met:

1. The rental unit is owned by an employer and is provided to an employee, or to an employee and the employee's spouse, in connection with the employee's employment.
2. The rental unit is subject to a tenancy in respect of which a tenancy agreement is first entered into on or after the day the *Protecting Tenants and Strengthening Community Housing Act, 2020* receives Royal Assent between,
 - i. the employer, as landlord, and the employee, as tenant, or
 - ii. the employer, as landlord, and the employee and the employee's spouse, as joint tenants. 2020, c. 16, Sched. 4, s. 1.

Application of exemption

(2) The exemption under subsection (1) applies with respect to a rental unit until the tenancy is terminated. 2020, c. 16, Sched. 4, s. 1.

Same

(3) Subsection (2) applies with respect to a rental unit even if,

- (a) the employee ceases to be employed before the tenancy is terminated; or
- (b) the employee dies before the tenancy is terminated, provided the employee's spouse is a tenant of the rental unit. 2020, c. 16, Sched. 4, s. 1.

▼ Section Amendments with date in force (d/m/y)

Other exemptions

Homes for special care, developmental services

6 (1) Paragraphs 6, 7 and 8 of subsection 30 (1) and sections 48.1, 49.1, 51, 52, 54, 55, 56, 104, 111 to 115, 117, 119 to 134, 136, 140 and 149 to 167 do not apply with respect to,

- (a) accommodation that is subject to the *Homes for Special Care Act*; or
- (b) accommodation that is a supported group living residence or an intensive support residence under the *Services and Supports to Promote the Social Inclusion of Persons with Developmental Disabilities Act, 2008*. 2006, c. 17, s. 6 (1); 2008, c. 14, s. 58 (5); 2009, c. 33, Sched. 8, s. 15; 2017, c. 13, s. 3 (1); 2020, c. 16, Sched. 4, s. 2.

(2) REPEALED: 2017, c. 13, s. 3 (2).

▼ Section Amendments with date in force (d/m/y)

Exemptions from rules relating to rent

6.1 (1) In this section,

“addition” means, with respect to a mobile home park or land lease community, an expansion beyond the boundaries of the mobile home park or land lease community; (“rajout”)

“commencement date” means the day section 1 of Schedule 36 to the *Restoring Trust, Transparency and Accountability Act, 2018* comes into force. (“date d’entrée en vigueur”) 2018, c. 17, Sched. 36, s. 1.

Buildings, etc., not occupied on or before November 15, 2018

(2) Sections 120, 121, 122, 126, 127, 129, 131, 132, 133, 165 and 167 do not apply on and after the commencement date with respect to a rental unit if the requirements set out in one of the following paragraphs are met:

1. The rental unit is located in a building, mobile home park or land lease community and no part of the building, mobile home park or land lease community was occupied for residential purposes on or before November 15, 2018.
2. The rental unit is entirely located in an addition to a building, mobile home park or land lease community and no part of the addition was occupied for residential purposes on or before November 15, 2018. 2018, c. 17, Sched. 36, s. 1.

Rental units in detached houses, semi-detached houses or row houses

(3) Sections 120, 121, 122, 126, 127, 129, 131, 132 and 133 do not apply on and after the commencement date with respect to a rental unit if all of the following requirements are met:

1. The rental unit is located in a detached house, semi-detached house or row house which, on or at any time before November 15, 2018, contained not more than two residential units.
2. The rental unit is a residential unit that meets all of the following requirements:
 - i. The unit has its own bathroom and kitchen facilities.
 - ii. The unit has one or more exterior or interior entrances.
 - iii. At each entrance, the unit has a door which is equipped so that it can be secured from the inside of the unit.
 - iv. At least one door described in subparagraph iii is capable of being locked from the outside of the unit.
3. The rental unit became a residential unit described in paragraph 2 after November 15, 2018.
4. One or both of the following circumstances apply:
 - i. At the time the rental unit was first occupied as a residential unit described in paragraph 2, the owner or one of the owners, as applicable, lived in another residential unit in the detached house, semi-detached house or row

house.

ii. The rental unit is located in a part of the detached house, semi-detached house or row house which was unfinished space immediately before the rental unit became a residential unit described in paragraph 2. 2018, c. 17, Sched. 36, s. 1.

Non-application of exemption under subs. (2) or (3)

(4) Subject to subsection (5), the exemption under subsection (2) or (3) does not apply with respect to a rental unit that is subject to a tenancy in respect of which a tenancy agreement was entered into on or before November 15, 2018. 2018, c. 17, Sched. 36, s. 1.

Application of subs. (4)

(5) Subsection (4) applies only with respect to the tenancy described in that subsection and does not apply with respect to any subsequent tenancy. 2018, c. 17, Sched. 36, s. 1.

Burden of proof

(6) For greater certainty, in an application to the Board in which the application of subsection (2) or (3) is at issue, the onus is on the landlord to prove that the subsection applies. 2018, c. 17, Sched. 36, s. 1.

Transition rules

(7) The following rules apply on and after the commencement date with respect to a rental unit, if subsection (2) or (3) applies to the rental unit and the unit is subject to a tenancy in respect of which a tenancy agreement was entered into before that date but after November 15, 2018:

1. Despite subsections (2) and (3), sections 121 and 122 continue to apply with respect to an agreement that was entered into between the landlord and the tenant of the rental unit under section 121 before the commencement date.
2. Despite subsections (2) and (3), section 132 continues to apply with respect to an application that was made by the landlord or the tenant of the rental unit under that section before the commencement date and was not finally

determined before that date.

3. Despite subsections (2) and (3), section 133 continues to apply with respect to an application that was made by the tenant of the rental unit under that section before the commencement date and was not finally determined before that date.

4. Despite subsection (2), section 165 continues to apply with respect to an assignment of the rental unit for which the landlord granted consent under section 95 before the commencement date or which was authorized by the Board under section 98 before that date. 2018, c. 17, Sched. 36, s. 1.

▼ Section Amendments with date in force (d/m/y)

Exemptions related to social, etc., housing

7 (1) Paragraphs 6, 7 and 8 of subsection 30 (1), sections 48.1, 49.1, 51, 52, 54, 55, 56 and 95 to 99, subsection 100 (2) and sections 101, 102, 104, 111 to 115, 117, 120, 121, 122, 126 to 133, 140, 143, 149, 150, 151, 159, 165 and 167 do not apply with respect to a rental unit described below:

1. A rental unit located in a residential complex owned, operated or administered by or on behalf of the Government of Canada or an agency of the Government of Canada.

2. A rental unit in a designated housing project as defined in the *Housing Services Act, 2011* that is owned, operated or managed by a service manager or local housing corporation as defined in that Act.

3. A rental unit located in a non-profit housing project or other residential complex, if the non-profit housing project or other residential complex was developed or acquired under a prescribed federal, provincial or municipal program and continues to operate under,

i. Part VII of the *Housing Services Act, 2011*,

ii. a pre-reform operating agreement as defined in the *Housing Services Act, 2011*, or

iii. an agreement made between a housing provider, as defined in the

Housing Services Act, 2011, and one or more of,

- A. a municipality,
- B. an agency of a municipality,
- C. a non-profit corporation controlled by a municipality, if an object of the non-profit corporation is the provision of housing,
- D. a local housing corporation as defined in the *Housing Services Act, 2011*, or
- E. a service manager as defined in the *Housing Services Act, 2011*.

- 4. A rental unit that is a non-member unit of a non-profit housing co-operative.
- 5. A rental unit provided by an educational institution to a student or member of its staff and that is not exempt from this Act under clause 5 (g).
- 6. A rental unit located in a residential complex owned, operated or administered by a religious institution for a charitable use on a non-profit basis. 2006, c. 17, s. 7 (1); 2006, c. 32, Sched. E, s. 7 (4); 2011, c. 6, Sched. 1, s. 188 (1); 2017, c. 13, s. 4; 2020, c. 16, Sched. 3, s. 12 (1); 2020, c. 16, Sched. 4, s. 3 (1).

Exemption re 12-month rule

(2) Section 119 does not apply with respect to,

- (a) a rental unit described in paragraph 1, 2, 3 or 4 of subsection (1) if the tenant occupying the rental unit pays rent in an amount geared-to-income due to public funding; or
- (b) a rental unit described in paragraph 5 or 6 of subsection (1). 2006, c. 17, s. 7 (2).

Exemption re notice of rent increase

(3) Sections 116 and 118 do not apply with respect to increases in rent for a rental unit due to increases in the tenant's income if the rental unit is as described in paragraph 1, 2, 3 or 4 of subsection (1) and the tenant pays rent in an amount geared-to-income due to public funding. 2006, c. 17, s. 7 (3).

Exception, subs. (1), par. 1